



Habeas Corpus Act 1640

1640 CHAPTER 10 16 Cha 1

An Act for [^{X1}the Regulating] the Privie Councell and for taking away the Court commonly called the Star Chamber.

Editorial Information

X1 Variant reading of the text noted in *The Statutes of the Realm* as follows: regulating of *O*. [*O*. refers to a collection in the library of Trinity College, Cambridge]

Modifications etc. (not altering text)

C1 Short title given by [Statute Law Revision Act 1948 \(c. 62\)](#), [Sch. 2](#)

Magna Charta, 9 H. III. c. 29.; 5 E. III. c. 9.; 25 E. III. st. 5. c. 4.; 28 E. III. c. 3.; 42 E. III. c. 3.; 36 E. III. c. 15.; 3 H. VII. c. 1.; 21 H. VIII. c. 20.; *All Matters examinable in the Star Chamber may be examinable and redressed by the Common Law; Council Table has assumed a Power contrary to Law.; Court of Star Chamber and all its Powers dissolved.*

Whereas by the Great Charter many times confirmed in Parliament It is Enacted That no Freeman shall be taken or imprisoned or disseised of his Freehold or Liberties or Free Customes or be Outlawed or exiled or otherwise destroyed and that the King will not passe upon him or condemn him but by lawfull Judgement of his Peers or by the Law of the Land And by another Statute made in the fifth yeare of the Reigne of King Edward the Third It is Enacted That no Man shall be attached by any accusation nor fore judged of Life or [^{X2}Lim] nor his Lands Tenements Goods nor Chattels seised into the Kings hands against the forme of the Great Charter and the Law of the Land And by another Statute made in the five and twentieth yeare of the Reigne of the same King Edward the Third It is accorded assented and established That none shall be taken by petition or suggestion made to the King or to his Councell unlesse it be by Indictment or Presentment of good and lawfull People of the same Neighbourhood where such deeds be done in due manner or by Processe made by Writ Originall at the Common Law and that none be put out of his Franchise or Freehold unlesse he bee duly brought in to answer and forejudged of the same by the course of [^{X3}the] Law and if any thing be done against the same it shall be redressed and holden for none And by another Statute made in the eight and twentieth yeare of the Reigne of the same King Edward the Third It is amongst other things Enacted That no Man of what Estate or condition soever he be shall be put

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out of his Lands or Tenements nor taken nor imprisoned nor disinherited without being brought in to answer by due Processe of Law And by another Statute made in the two and fourtieth yeare of the Reigne of the said King Edward the Third It is enacted That no Man be put to answer without presentment before Justices or matter of Record or by due Processe and Writ Originall according to the old Law of the Land and if any thing be done to the contrary it shall be void in Law and holden for errour And by another Statute made in the six and thirtieth yeare of the same King Edward the Third It is amongst other things Enacted That all Pleas which shall be pleaded in any Courts before any the Kings Justices or in his other places or before any of his other Ministers or in the Courts and places of any other Lords within the Realm shall be entered and inrolled in Latine And whereas by the Statute made in the third yeare of King Henry the seaventh power is given to the Chancellour the Lord Treasurer of England for the time being and the Keeper of the Kings Privie Seale or two of them calling unto them a Bishop and a Temporall Lord of the Kings most honourable Councell and the two chiefe Justices of the Kings Bench and Common Pleas for the time being or other two Justices in their absence to proceed as in that Act is expressed for the punishment of some particular offences therein mentioned And by the Statute made in the one and twentieth yeare of King Henry the eighth The President of the Councell is associated to joyne with the Lord Chancellour and other Judges in the said Statute of the third of Henry the seaventh mentioned But the said Judges have not kept themselves to the points limited by the said Statute but have undertaken to punish where no Law doth warrant and to make Decrees for things having no such authoritie and to inflict heavier punishments then by any Law is warranted And forasmuch as all matters examinable or determinable before the said Judges or in the Court commonly called the Star Chamber may have their proper remedy and redresse and their due punishment and correction by the Common Law of the Land and in the ordinary course of Justice elsewhere And forasmuch as the reasons and motives inducing the erection and continuance of that Court doe now cease and the Proceedings Censures and Decrees of that Court have by experience beene found to be an intollerable burthen to the subjects and the meanes to introduce an Arbitrary Power and Government And forasmuch as the Councell Table hath of late times assumed unto it selfe a power to intermedle in Civill causes and matters onely of private interest betweene party and party and have adventured to determine of the Estates and Liberties of the subject contrary to the Law of the Land and the Rights and Priviledges of the subject by which great and manifold mischeifes and inconveniencies have arisen and happened and much incertainty by meanes of such proceedings hath beene conceived concerning Mens Rights and Estates For settling whereof and preventing the like in time to come. Be it Ordained and Enacted by the Authority of this present Parliament That the said Court commonly called the Star Chamber and all Jurisdiction Power and Authority belonging unto or exercised in the same Court or by any the Judges Officers or Ministers thereof be from the first day of August in the yeare of our Lord God one thousand six hundred fourty and one cleerely and absolutely dissolved taken away and determined and that from the said first day of August neither the Lord Chancellour or Keeper of the Great Seale of England the Lord Treasurer of England the Keeper of the Kings Privie Seale or President of the Councell nor any Bishop Temporall Lord Privy Councillor or Judge or Justice whatsoever shall have any power or authoritie to heare examine or determine any matter or thing whatsoever in the said Court commonly called the Star Chamber or to make pronounce or deliver any Judgement Sentence Order or Decree or to doe any Judicall or Ministeriall Act in the said Court And that all and every Act and Acts of Parliament and all and every Article Clause and Sentence in them and every of them by which any Jurisdiction power or authority is given limited or appointed unto the said Court commonly called the Star Chamber or unto all or any the Judges Officers or Ministers thereof or for any proceedings to be had or made in the said Court or for any matter or thing to be drawn into question examined or determined there shall for so much

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as concerneth the said Court of Star Chamber and the Power and Authoritie thereby given unto it be from the said first day of August repealed and absolutely revoked and made void.

Editorial Information

- X2** Variant reading of the text noted in *The Statutes of the Realm* as follows: Lymne O. [O. refers to a collection in the library of Trinity College, Cambridge]
- X3** interlined on the Roll.

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II. Like Jurisdiction in several other Courts repealed and taken away.

No Court or Council to have the like Jurisdiction.

[^{x4}And be it likewise Enacted That the like Jurisdiction now used and exercised in the Court before the President and Councill in the Marches of Wales and alsoe in the Court before the President and Councill established in the Northern parts And also in the Court commonly called the Court of the Dutchy of Lancaster held before the Chancellor and Councill of the Court And alsoe in the Court of Exchequer of the Countie Palatine of Chester held before the Chamberlaine and Councill of that Court The like Jurisdiction being exercised there shall from the said first day of August one thousand six hundred fourty and one be alsoe repealed and absolutely revoked and made void Any Law prescription custome or Usage Or the said Statute made in the third yeare of King Henry the seventh Or the Statute made the one and twentieth of Henry the eighth Or any Act or Acts of Parliament heretofore had or made to the contrary thereof in any wise notwithstanding And that from henceforth no Court Councill or place of Judicature shall be erected ordained constituted or appointed within this Realme of England or Dominion of Wales which shall have use or exercise the same or the like Jurisdiction as is or hath beene used prActised or exercised in the said Court of Star Chamber.]

Editorial Information

- X4** annexed to the Original Act in a separate Schedule.

III. The King or his Privy Council shall have no Jurisdiction over any Man's Estate.

Be it likewise declared and Enacted by Authoritie of this present Parliament That neither his Majestie nor his Privie Councill have or ought to have any Jurisdiction power or authority by English Bill Petition Articles Libell or any other arbitrary way whatsoever to examine or drawe into question determine or dispose of the Lands Tenements Hereditaments Goods or Chattels of any the subjects of this Kingdome But that the same ought to be tried and determined in the ordinary Courts of Justice and by the ordinary course of the Law.

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IV. Great Officers and others offending;

First Offence, Penalty £500.; Second Offence, Penalty £1000.; Third Offence, Disabled.

And be it further provided and Enacted. That if any Lord Chancellor or Keeper of the Great Seale of England Lord Treasurer Keeper of the Kings Privy Seale President of the Councill Bishop Temporall Lord Privy Councillour Judge or Justice whatsoever shall offend or doe any thing contrary to the purport true intent and meaning of this Law [^{X4}Then he or they shall for such offence forfeit the sum of five hundred pounds of lawfull Money of England unto any party grieved his Executors or Administrators who shall really prosecute for the same and first obtain Judgement thereupon to be recorded in any Court of Record at Westminster by Action of Debt Bill Plaint or Information wherein no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more then one Imparlance And if any person against whom any such Judgment or Recovery shall be had as aforesaid shall after such Judgement or Recovery offend againe in the same then he or they for such offence shall forfeit the sum of one thousand pounds of lawfull Money of England unto any party greived his Executors or Administrators who shall really prosecute for the same and first obtain Judgement thereupon to be recorded in any Court of Record at Westminster by Action of Debt Bill Plaint or Information in which no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more than one Imparlance And if any Person against whom any such second Judgement or Recovery shall be had as aforesaid shall after such Judgement or Recovery offend againe in the same kind] and shall be thereof duly convicted by Indictment Information or any other lawfull way or meanes that such Person soe convicted shall be from thenceforth disabled and become by vertue of this Act incapable Ipso fActo to beare his and their said Office and Offices respectively and shall be likewise disable to make any Gift Grant Conveyance or other disposition of any his Lands Tenements Hereditaments Goods or Chattels or to take any benefit of any Gift Conveyance or Legacy to his owne use.

Editorial Information

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V. Treble Damages to the Party grieved.

And every person so offending shall likewise forfeit and loose unto the Party grieved by any thing done contrary to the true intent and meaning of this Law his trebble damages which he shall sustain and be put unto by meanes or occasion of any such Act or thing done the same to be recovered in any of His Majesties Courts of Record at Westminster by Action of Debt Bill Plaint or Informac[i]on wherein no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more then one Imparlance

VI. Every Person committed contrary to this Act shall have an Habeas Corpus for the ordinary Fees.

Cause of Detainer certified by Sheriff, &c. and thereupon Court to proceed.; Default by Judge, &c.; Damages.

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And be it alsoe provided and Enacted That if any person shall hereafter be committed restrained of his Libertie or suffer imprisonment [^{x4}by the Order or Decree of any such Court of Star Chamber or other Court aforesaid now or at any time hereafter having or p[re]tending to have the same or like Jurisdiction power or authoritie to commit or imprison as aforesaid Or by the command or Warrant of the Kings Majestie his Heires or Successors in theire owne Person or by the Command or Warrant of the Councell board or of any of the Lords or others of his Majesties Privy Councell] That in every such case every Person so committed restrained of his libertie or suffering imprisonment upon demand or motion made by his Councell or other imployed by him for that purpose unto the Judges of the Court of Kings Bench or Common Pleas in open Court shall without delay upon any pretence whatsoever for the ordinary Fees usually paid for the same have forthwith granted unto him a Writ of Habeas Corpus to be directed generally unto all and every Sheriffs Gaoler Minister Officer or other Person in whose custody the party committed or restrained shall be [^{x5}and the Sheriffs Gaoler Minister Officer or other p[er]son in whose custody the p[er]ty so committed or restrained shall be] shall at the return of the said Writ & according to the command thereof upon due and convenient notice thereof given unto him [^{x4}at the charge of the party who requireth or procureth such Writ and upon securitie by his owne bond given to pay the charge of carrying back the prisoner if he shall be remanded by the Court to which he shall be brought as in like cases hath beene used such charges of bringing up and carrying backe the prisoner to be alwaies ordered by the Court if any difference shall arise thereabout] bring or cause to be brought the body of the said party so committed or restrained unto and before the Judges or Justices of the said Court from whence the same Writ shall issue in open Court and shall then likewise certifie the true cause of such his deteinor or imprisonment and thereupon the Court within Three Court dayes after such return made and delivered in open Court shall proceed to examine and determine whether the cause of such commitment appearing upon the said return be just and legall or not and shall thereupon do what to justice shall appertaine either by delivering bailing or remanding the prisoner And if any thing shall be otherwise wilfully done or omitted to be done by any Judge Justice Officer or other person aforementioned contrary to the direction and true meaning hereof That then such person so offending shall forfeit to the party grieved his trebble damages to be recovered by such meanes and in such manner as is formerly in this Act limited and appointed for the like penaltie to be sued for and recovered

Editorial Information

- X4** annexed to the Original Act in a separate Schedule.
X5 interlined on the Roll.

VII. To what Courts this Act shall extend.

[^{x4}Provided alwaies and be it Enacted That this Act and the severall Clauses therein contained shall be taken and expounded to extend only to the Court of Star Chamber and to the said Courts holden before the President and Councell in the Marches of Wales and before the President and Councell in the Northern parts and alsoe to the Court commonly called the Court of the Dutchy of Lancaster holden before the Chauncellour and Councell of that Court And alsoe in the Court of Exchequer of the County Palatine of Chester held before the Chamberlaine and Councell of that Court And to all Courts of like Jurisdiction to be hereafter erected ordained constituted or appointed as aforesaid And to the Warrants and directions of the Councell board

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and to the commitments restraints & Imprisonments of any Person or Persons made commanded or awarded by the Kings Majesty his Heires or Successors in their owne person or by the Lords and others of the Privie Councell and every one of them

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VIII. VIII. Limitation of Information, &c.

And lastly Provided and be it Enacted That no person or persons shall be sued impleaded molested or troubled for any offence against this present Act unlesse the party supposed to have so offended shall be sued or impleaded for the same within two yeares at the most after such time wherein the said offence shall be committed.]

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X4 annexed to the Original Act in a separate Schedule.